

## ASCII MASTER FLOW – PANEL 1/12: Citizenship: membership, rights and single national status

### PERSON WITHIN INDIA

- +-- CITIZEN: political membership and citizen-specific constitutional rights
  - | Articles 15, 16, 19 and 29 use citizen/citizens
  - | Article 30 uses minorities; do not add a citizen-only word absent from the text
- +-- NON-CITIZEN: Articles 14, 20, 21 and 25 protect persons
  - | Article 22(3)(a) excludes enemy aliens only from clauses (1)-(2)

CITIZENSHIP = membership | DOMICILE = permanent legal home | RESIDENCE = factual link

SINGLE CITIZENSHIP does not erase constitutionally authorised regional protection.

CASE CONTROL: Pradeep Jain (1984) explains one Indian domicile, not State citizenship.

MUST REMEMBER: Separate the commencement settlement in Articles 5-11 from the continuing statutory regime under the Citizenship Act, 1955, and state each migration, birth, descent, registration, naturalisation, loss, Section 6A, OCI and Section 6B rule with its exact trigger and date.

## ASCII MASTER FLOW – PANEL 2/12: Articles 5-7: commencement citizenship decision tree

AT COMMENCEMENT: 26 JANUARY 1950

- +-- ARTICLE 5: domicile in India + birth | parentage | five-year residence
- +-- ARTICLE 6: Pakistan-to-India migration
  - | before 19 Jul 1948 -> residence since migration
  - | on/after 19 Jul 1948 -> application, six-month residence and registration
- +-- ARTICLE 7: India-to-Pakistan migration after 1 Mar 1947 -> excluded
  - permit for resettlement/permanent return -> post-19 Jul Article 6 route

TRAP: residence alone never replaced Article 5 domicile.

## ASCII MASTER FLOW – PANEL 3/12: Articles 8-11: diaspora, disqualification, continuity and Parliament

ARTICLE 8 -> Indian origin abroad + diplomatic/consular registration

ARTICLE 9 -> voluntary foreign citizenship blocks Articles 5, 6 and 8 claims

ARTICLE 10 -> citizenship continues subject to parliamentary law

ARTICLE 11 -> Parliament may regulate acquisition, termination and every other matter

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CITIZENSHIP ACT, 1955

CONTROL: Article 9 is commencement-context text; later termination also rests on Section 9.

## ASCII MASTER FLOW – PANEL 4/12: Five acquisition routes and their exact gates

CITIZENSHIP ACT, 1955

- +-- BIRTH: place + date + parental status + Section 3(2) exceptions
- +-- DESCENT: citizen parent + date-specific registration/declaration controls
- +-- REGISTRATION: listed category + calculated residence + oath + discretion
- +-- NATURALISATION: 12 months + 11/14 aggregate + other Third Schedule tests
- +-- INCORPORATION: Central Government order for newly incorporated territory

NO AUTOMATIC ROUTE merely from marriage, ancestry, property, residence or an identity card.

## ASCII MASTER FLOW – PANEL 5/12: Birth, descent and registration: date-and-category drill

### BIRTH IN INDIA

1950-before 1 Jul 1987 -> birth generally sufficient, subject to exceptions

1 Jul 1987-before 3 Dec 2004 -> either parent a citizen

from 3 Dec 2004 -> both citizens OR one citizen + other not illegal migrant

### DESCENT OUTSIDE INDIA

before 10 Dec 1992 -> paternal rule | later -> either parent

from 3 Dec 2004 -> consular registration plus statutory declaration controls

REGISTRATION -> category first; seven-year formula is 12 months + 6 of prior 8 years.

## ASCII MASTER FLOW – PANEL 6/12: Loss, safeguards and OCI cancellation are category-specific

RENUNCIATION -> full-age citizen declaration; minor follows with resumption window

TERMINATION -> voluntary acquisition of foreign citizenship; Section 9 controls

DEPRIVATION -> eligible category + listed ground + public-good finding + procedure  
fraud | disloyalty | enemy dealing | specified conviction | seven years abroad

OCI IS NOT CITIZENSHIP

Section 7D requires a hearing. The 11 Aug 2025 Section 7D(da) notification adds:

sentence of at least two years OR charge-sheet for an offence punishable by seven years.

CLOSE DISTINCTION: Article 9 is confined to citizenship by virtue of Articles 5, 6 or 8; the present no-dual-citizenship position also depends on Section 9. OCI is a statutory card, while the CAA and the 2025 immigration exemption use different cut-offs and produce different legal consequences.

## ASCII MASTER FLOW – PANEL 7/12: Assam Section 6A: three streams and the controlling judgment

### ASSAM-SPECIFIC SECTION 6A

before 1 Jan 1966 -> deemed citizens from 1 Jan 1966

1 Jan 1966-before 25 Mar 1971 -> detection + registration + ten-year vote exclusion

on/after 25 Mar 1971 -> no Section 6A protection

### IN RE: SECTION 6A (2024) – 17 OCTOBER 2024

4:1 majority upheld validity but required effective implementation

Pardiwala J dissented prospectively on temporal/detection design

NRC reference: midnight of 24 March 1971; do not confuse it with CAA 2014.

## ASCII MASTER FLOW – PANEL 8/12: CAA class and the 19 August 2026 Collector procedure

CAA CLASS = six communities + three countries + entry on/before 31 Dec 2014

Hindu | Sikh | Buddhist | Jain | Parsi | Christian

Afghanistan | Bangladesh | Pakistan

19 AUG 2026: G.S.R. 742(E) + S.O. 4583(E)

Specified State/UT applicants -> electronic application to jurisdictional Collector

Collector -> verify -> enquire -> oath -> eligibility/suitability -> grant or reject

Pending committee applications transfer to Collector. Eligibility and 2014 cut-off do not change.



## ASCII MASTER FLOW – PANEL 9/12: CAA equality debate and territorial protections

### ARTICLE 14 TEST

comparator -> intelligible differentia -> rational nexus -> arbitrariness

STATE CASE -> selected persecuted minorities; humanitarian and staged legislation

CHALLENGE -> religion/country exclusions; under-inclusion; secularism; Assam impact

### SECTION 6B DOES NOT APPLY IN

Sixth Schedule tribal areas of Assam, Meghalaya, Mizoram and Tripura

areas under the notified Inner Line

STATUS THROUGH 28 AUG 2026: law/rules operate; no located final merits judgment.

## ASCII MASTER FLOW – PANEL 10/12: Documents and exact PYQ controls

### PROOF HIERARCHY

Citizenship certificate -> direct statutory evidence

Passport/EPIC -> strong or relevant evidence, not irrebuttable in every dispute

Aadhaar -> does not by itself prove citizenship or domicile

2018 PRELIMS GS-I Q12: Aadhaar proof + deactivation -> neither statement correct

2021 PRELIMS GS-I Q89: one citizenship/domicile; birth-only President; deprivation  
exact options yield 1 only; repository solution remains qualified if official key is absent.

## ASCII MASTER FLOW – PANEL 11/12: Executable 10, 15 and 20-mark answer architecture

10 MARKS / 150 WORDS

define demand -> 3 legal anchors -> one caveat/current point -> qualified verdict

15 MARKS / 250 WORDS

thesis -> Articles 5-11 -> statutory mechanism -> judgment/debate -> balance -> verdict

20 MARKS / 250 WORDS

exact class/doctrine -> argument and counterargument -> named evidence -> federal impact  
-> 2026 procedural status -> constitutional test -> feasible safeguards -> conclusion

For every model: demand decode + executable answer + why it earns + specific improvement.

## ASCII MASTER FLOW – PANEL 12/12: Qualified synthesis: membership under constitutional supervision

### INDIAN CITIZENSHIP

- constitutional founding settlement
  - + parliamentary statutory administration
  - + judicial review under equality, liberty and natural justice

### BALANCE

- equal membership + fraternity
- lawful migration control + regional protection
- diaspora access without political citizenship
- humanitarian facilitation without arbitrary classification

FINAL LINE: membership is legitimate only when classification, proof and procedure remain lawful.

LEGAL/SOURCE LIMIT: Current procedure must follow the 2024 Rules and the 19 August 2026

Collector-route notifications. Section 6A remains valid under the 17 October 2024 majority;  
no unlocated final CAA judgment may be invented.